(except the special leave appeal jurisdiction of the Supreme Court) in such disputes. So far, no such tribunal has been established. It must be noted here that in[3] (1997), the Supreme Court declared this provision as unconstitutional. Consequently, if at any time an election tribunal is established, an appeal from its decision lies to the high court.

ELECTION MACHINERY[3a]

Election Commission of India (ECI) Under Article 324 of the Constitution of India, the Election Commission of India is vested with the power of superintendence, direction and control of conducting the elections to the Lok Sabha and State Legislative Assemblies. The Election Commission of India is a three-member body, with one Chief Election Commissioner and two Election Commissioners. The President of India appoints the Chief Election Commissioner and the Election Commissioners.

Chief Electoral Officer (CEO) The Chief Electoral Officer of a State/Union Territory is authorised to supervise the election work in the State/Union Territory subject to the overall superintendence, direction and control of the Election Commission of India. The Election Commission of India nominates or designates an officer of the Government of the State/Union Territory as the Chief Electoral Officer in consultation with that State Government/Union Territory Administration.

District Election Officer (DEO) The District Election Officer supervises the election work in a district. The Election Commission of India nominates or designates an officer of the State Government as the District Election Officer in consultation with the State Government.

Returning Officer (RO) The Returning Officer of a Parliamentary or assembly constituency is responsible for the conduct of elections in the Parliamentary or assembly constituency concerned. The Election Commission of India nominates or designates an officer of the Government or a local authority as the Returning Officer for each of the assembly and parliamentary constituencies in consultation with the State Government/Union Territory Administration.

Electoral Registration Officer (ERO) The Electoral Registration Officer is responsible for the preparation of electoral rolls for a Parliamentary/assembly constituency. The Election Commission of India, in consultation with the State/UT government, appoints an officer of the government or the local authorities as the Electoral Registration Officer.

Presiding Officer The Presiding Officer with the assistance of polling officers conducts the poll at a polling station. The District Election Officer appoints the Presiding Officers and the Polling Officers. In the case of Union Territories, such appointments are made by the Returning Officers.

Observers The Election Commission of India nominates officers of Government as Observers for Parliamentary and Assembly Constituencies. These observers are of various kinds[4]*:*

1. **General Observers:** The Commission deploys General Observers in adequate number to ensure smooth conduct of elections. These Observers are asked to keep a close watch on every stage of the electoral process to ensure free and fair elections.

2. **Expenditure Observers:** The Commission appoints Expenditure Observers and Assistant Expenditure Observers who will exclusively monitor the election expenditure of the contesting candidates.